



The Psychology of Death Claim Investigations

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Mens Rea v Actus Reus

- **Mens rea** is Latin for '**guilty mind**'. In criminal law, it is viewed as one of the necessary elements of a crime.
- **Actus reus** is the Latin term for the '**guilty act**' which, when proved beyond a reasonable doubt in combination with the mens rea, produces criminal liability in the common law-based criminal law jurisdictions of Canada, Australia, India, Pakistan, South Africa, New Zealand, England, Ireland and the United States.

**INSURERS NEED TO LOOK MORE INTO THE MENS REA AS WELL
AS THE ACTUS REUS.**

BUT HOW?



By Being Intelligence Led





Reason To Gain?

- Cultural
- Political
- Financial
- Social
- Commercial
- Personal
- Economical
- Environmental
- Legal
- Public
- Educational
- Criminal
- Civil
- Debt
- Influential
- Greed
- Rightful





Means, Motive, Opportunity?

“The below summary is a live, accurate snapshot of the current business operating from the risk address:

- Liquidity has declined over the past year from net current liabilities of £125,627 to net current assets of GBP £5,074.
- Bank and cash figures total £3,384 .
- **Creditors owned total of £195,034 .**
- Reserves stand at £1,489.
- The company appears to be of insufficient financial stability to undertake contracts.
- The company is flagged as high risk.”





FACT SHEET/10 December 2010

OFFICE OF THE COMMISSIONER

BUREAU OF CUSTOMS

SUBJECT : CUSTOMS SEIZES 20 CONTAINERS OF SMUGGLED SUGAR

- 1) Twenty container vans loaded with refined sugar from Thailand has been declared abandoned by the Bureau of Customs after its consignee failed to pay the assessed duties and taxes of P2.7 million within the period allowed by law.
- 2) Customs Commissioner Angelito Alvarez said the unclaimed sugar with a dutiable value of P16 million had been forfeited in favor of the government and would be sold in public auction early next year.
- 3) The sugar shipment which arrived July 20 this year at the Port of Manila was consigned to Unitrade Industrial Manufacturing Corporation which failed to claim the cargo before the lapse of the 15-day grace period for it to do so.
- 4) Section 1801 (b) of the Tariff and Customs Code of the Philippines, as amended, provides that the failure of the consignee to claim the subject shipment by paying the duties and taxes thereon within 15 days from the filing of the covering import entry is sufficient ground for the government to declare it "ABANDONED in favor of the government to be disposed in the manner provided for by law."
- 5) It is still not known why Unitrade was not able to have its sugar shipment clear customs before the issuance by Port of Manila District Collector Rogel Gatchalian of a Decree of Abandonment but sources said it was possible something went wrong with the company's tax subsidy arrangement with the National Food Authority.
- 6) Alvarez said the expeditious disposal of abandoned, seized and forfeited cargoes is one of the non-traditional sources of revenue that the agency had started to maximize since the beginning of President Aquino's administration.
- 7) He revealed that while the inventory and appraisal of said cargoes was still an on-going process, the BOC had started looking into the feasibility of conducting auction sales using appropriate IT technologies.



Medication

“It is important to note that LINDA WRIGHT stated that MICHAEL WRIGHT was on an anti-depressant called EFFEXOR. This is considered as a strong anti-depressant and is used to treat Major Depressive Disorder, Anxiety and Panic Disorder. Suicidal thoughts are listed as some of the side effects when first taking the medication.

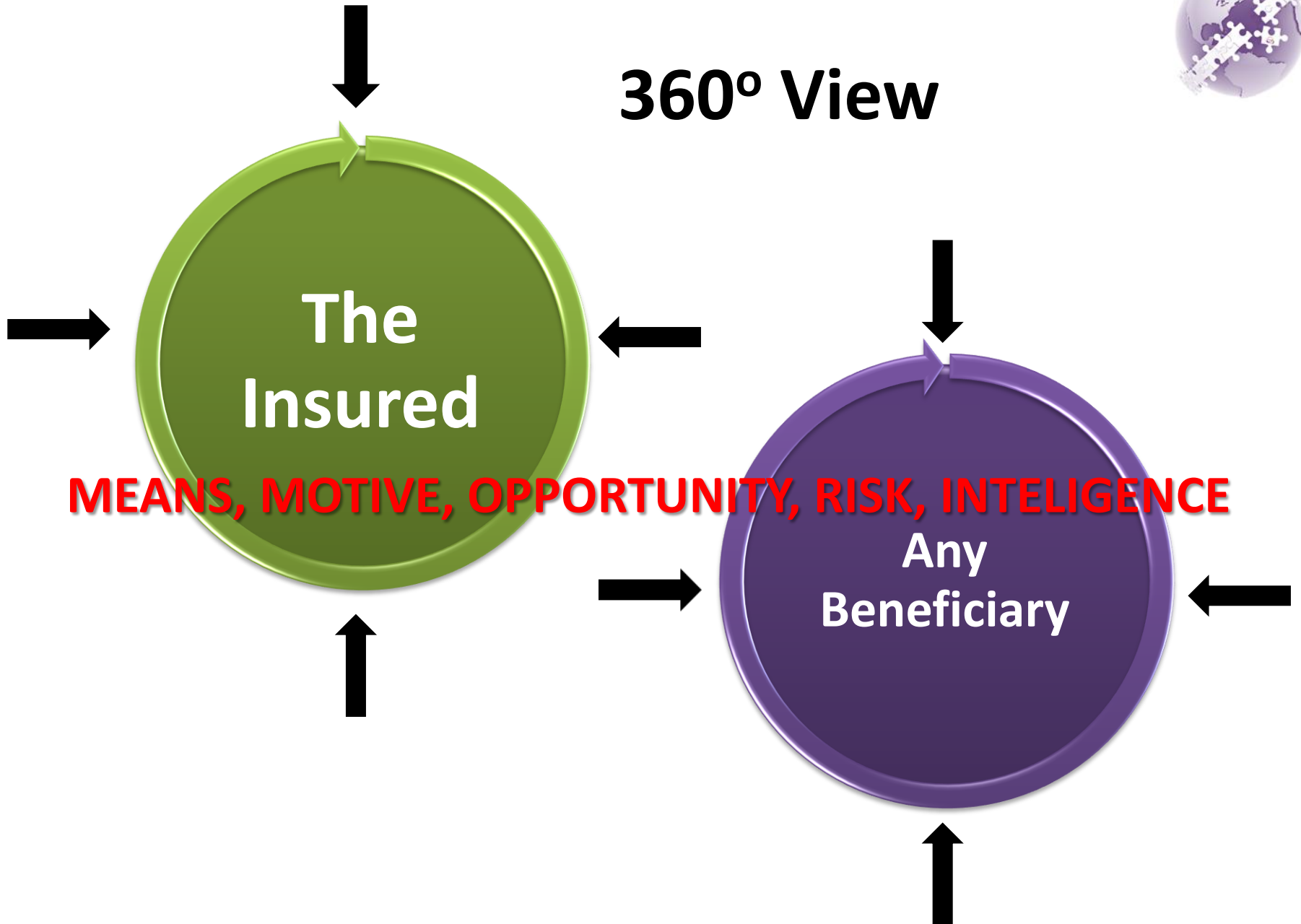
You may have thoughts about suicide when you first start taking an antidepressant, such as Effexor, especially if you are younger than 24 years old. Your doctor will need to check you at regular visits for at least the first 12 weeks of treatment.

Above is a snippet of the side effects information from a relating webpage. It states about the suicidal thoughts and that for the first 12 weeks of treatment regular consultations with the doctor is required to monitor behaviour and progress.

MICHAEL WRIGHT had been on the medication for 2 months prior to his death, however he had been in the UK for approximately 4 weeks of this 2 month period. Interviews with his doctor confirmed that he missed 4 weeks of consultations to check his progress”.



360° View





The Investigation





Foreign Country Investigations – Where Do We Begin?





Overseas Investigations

Some examples of why each country is different:

- Processes
- Procedures
- Language
- Laws
- Legalisation
- Cultural Behaviour
- Social Graces
- Attitude To Investigation!



The Norm in Bali.....





Deployment Speed Is Vital!





 Incident Occurred
Client Notified

 I-COG Notified By
Insurer

 Investigator
Arrives in Bali

 Obtained.....



- Interviewed Health & Safety Executives
- Obtained Numerous Statements
- Photographed Faulty Neon Sign
- Viewed Construction operations at the scene
- Inspected Neon Sign Being Tested
- Obtained 5 Key Witness Statements & Full Locus Inspection
- Obtained Copies of Police Report/Statements



Value of Decisive Action

- Speed increases opportunities
- More witnesses are present
- There is a much clearer recollection of events
- More evidence is secured (i.e. CCTV)
- Less time available to 'cover things up'
- You need a 'real live' view of the situation





CCTV Can Be Crucial

(often its only available for 28 days at
best!)







Recovery & Investigation

- Quickly identify all witnesses & obtain statements
- Review CCTV footage
- Conduct full locus investigations
- Meet with Police / Emergency Services
- Interview Drs and obtain all medical records (if applicable)
- Review toxicology / blood tests
- Inspect property, vehicles, hotels, vessels etc (if applicable)
- Identify contributing factors (drugs/alcohol)
- Identify recovery options (if applicable)



Meanwhile.....



Murder/Manslaughter/Suicide?



The Risk Assessment of MENS REA



The Speedy Investigation Of The ACTUS REUS



Full desktop/intelligence
profiling

Speedy deployment
to the scene within
24-48 hours

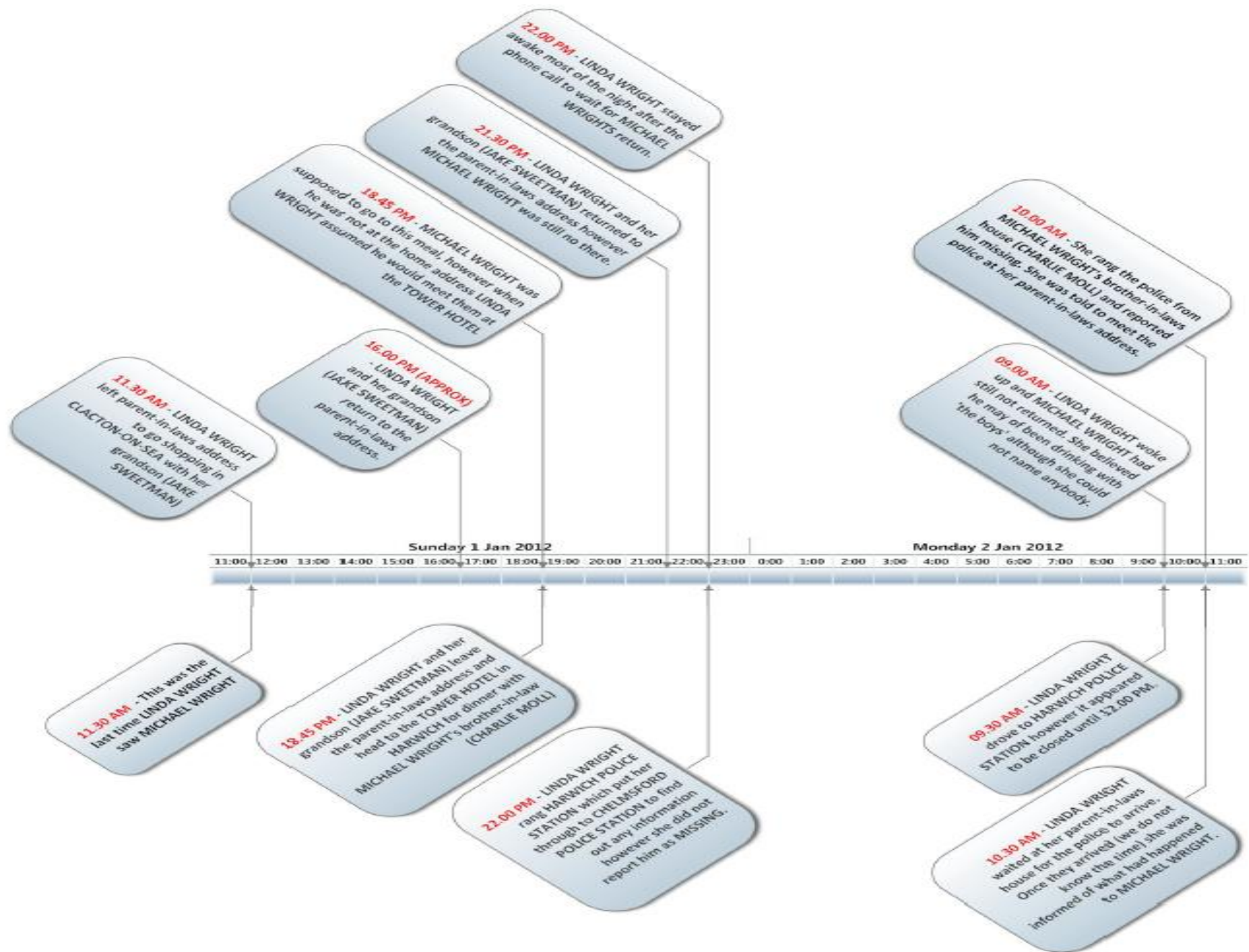
**A MORE INFORMED INSURER AND COUNSEL IS IN A FAR MORE
POWERFUL POSITION!**



Timeline of Events

- Establishing a timeline for the deceased is **ABSOLUTELY NECESSARY**
- It highlights key events which would need to be investigated/assessed for risk triggers to the death
- It also highlights vital intelligence/avenues to follow
- There is always a reason for the death to have happened then

**ALWAYS ASK YOURSELF:
'WHY HERE? WHY NOW?'**





A case of 'potential suicide', which had not been recorded as such by the coroner.....





Arthur Pedrick

1. Was walking across the road at midnight when he was hit by a truck and death was instantaneous
2. Ruling was accidental
3. However we were asked to become after this ruling and over a matter of weeks we discovered:
 - Lamps out at that section of road were reported to the local council
 - Deceased was aware of this fault as he mentioned it to a neighbour the day of his death saying specifically 'someone could get killed along there'.
 - When he went out that night his wife told him to wear something brighter as it was dark. He replied 'I don't want to'. He was wearing dark clothing.
 - His business was failing dismally and he was 2 weeks away from bankruptcy.
 - He was prescribed 20mg Cipralex per day but had not been taken them for 1 month prior to his death. The side effects are deep depression.
 - His wife reported that he had not washed/bathed for 2 days prior to his death.
 - He was out the night before sitting on the garden wall 'watching traffic'.

Introducing You To The 'F' Word



Fake Certificates



Forgeries



HAYAT SHAHEED TEACHING HOSPITAL
University Road Peshawar, Pakistan

Ref: 418



Date: 27-04-2009
C.M.O. Dr. FETIKHAR AHMAD
Hayat Shaheed Teaching Hospital
University Road
Peshawar Pakistan

Miss ~~Wahida~~ citizen of Australia with passport No. L3122172 come in a tour to Pakistan. Due to changing of the weather she has been affected to Malaria illness. She has been admitted to Hayat Shaheed Teaching Hospital from 20/04/2009 up to 27/04/2009 and after a general checkup and C.T Scan. She was under the serious supervision of the related doctor. .

As she is insured in Australia , the Total Amount of his Medical expenses with its medicines are about 4200 Australian Dollars. Wish to be cooperated with her in this issue.

Regards



Fraud





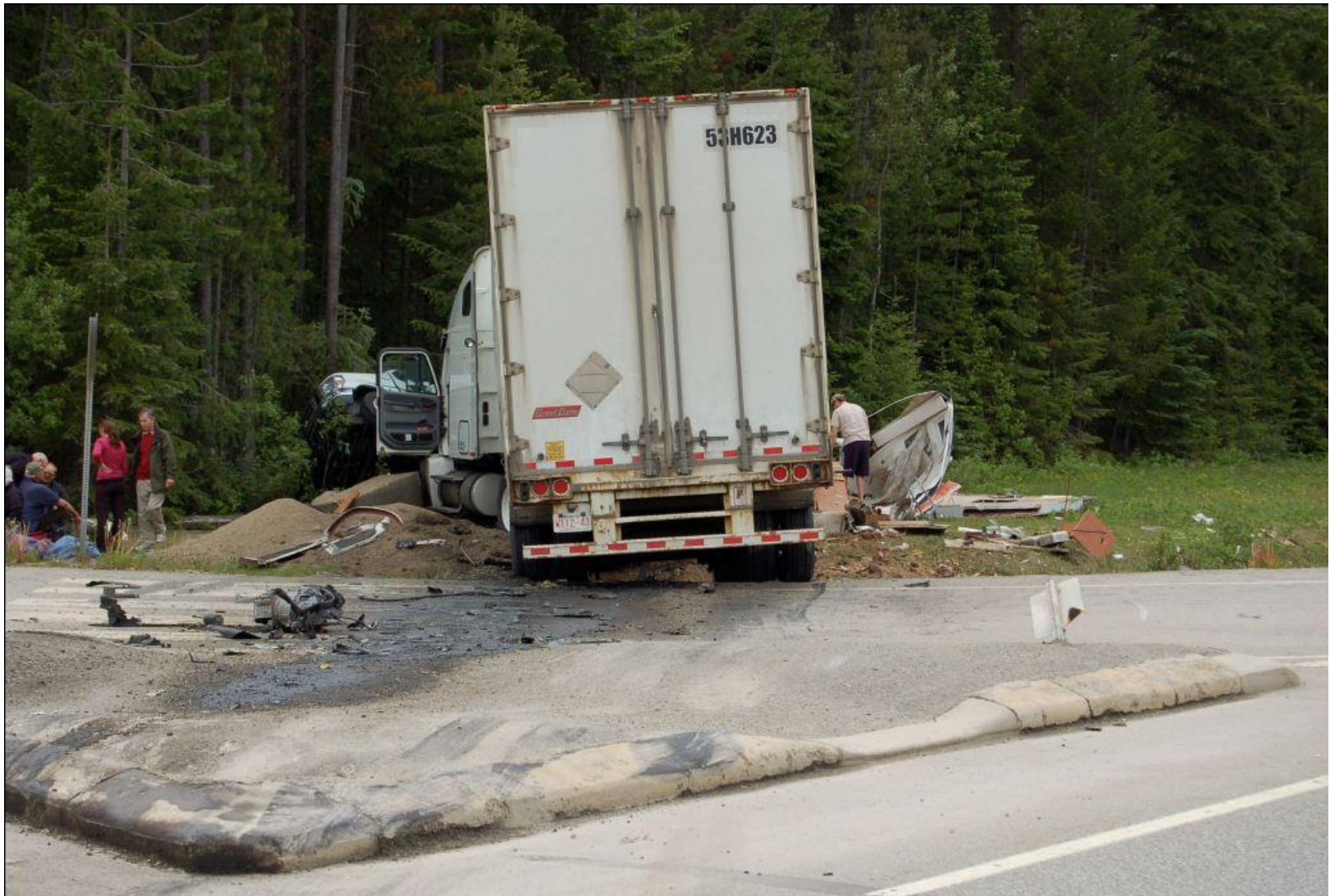
Fatal Traffic Accidents

Road deaths are the no.1 risk to tourists around the world, according to a recent report released by a British Road Safety Foundation.

An estimated 25,000 insured people are killed or injured annually.

Common trends are a lethal cocktail of :

- 'killer' roads,
- unsafe vehicles
- dangerous driving and disorientated travellers
- intoxicants







Questions





Thank you!

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Example Reports Available Upon Request